

withdrawal.

The Court finds that there is good cause to grant this Motion to relieve Plaintiff's Counsel. The Court acknowledges that the prejudice to Plaintiff is minimal, as there is ample time for Plaintiff to retain trial counsel, or, in the alternative, to represent himself.

Ruling

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Plaintiff's Counsel to be Relieved as Counsel of Record. The makes the following orders:

1. This motion is **granted**.
2. The Court will execute the Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053) as submitted on December 12, 2025. The withdrawal is effective immediately.
3. Defendant's Counsel is ordered to serve a copy of the Order (MC-053) to Plaintiff by mail at his last known address, along with a change of address form, Judicial Council Form MC-040, instructing the former client to fill-out and file the change of address form with the Court.
4. Defendant's counsel shall file a proof of service form indicating that the client was served with the Court's Order (MC-053) and the Change of Address form (MC-040).

7. 9:00 AM CASE NUMBER: C23-02436

CASE NAME: DENNIS WANKEN VS. NAHLA DROUBI

***HEARING ON MOTION IN RE: CONTINUE TRIAL**

FILED BY: WANKEN, DENNIS

TENTATIVE RULING:

Summary

This Motion is related to Lines 8 and 9. This tentative ruling is for Line 7 only. Plaintiffs and Cross-Defendants Dennis Wankin and Eleni Wanken's Motion to Continue the trial is **granted** as set forth in this order. Counsel are ordered to appear at the hearing on March 11, 2026 for a Trial Setting Conference.

Background

This lawsuit pertains to joint easement that relates to properties owned by both parties in Moraga, California, and the alleged breach of a maintenance agreement of a surface roadway on the easement.

On January 6, 2026, Plaintiff and Cross Defendant Dennis Wankin and Eleni Wanken ("Plaintiffs") filed this Motion to Continue the Trial ("Motion") of this action which is currently set for April 6, 2026. The Motion is supported by a Memorandum of Points and Authorities and Declaration of Counsel Gary Sloboda asserting good cause due to cross-motions for leave to amend operative pleadings filed by both parties. Specifically,

1. Defendant has filed a motion for leave to amend her First Amended Cross-Complaint to add

- an eighth cause of action and supporting allegations against Plaintiffs for slander of title.
2. Plaintiffs have filed a motion for leave to amend their Complaint to add a fourth and fifth cause of action and supporting allegations against Defendant for trespass and statutory contribution, respectively.
 3. If Defendant is granted leave to amend her First Amended Cross-Complaint, Plaintiff intends to demur to her new eighth cause of action for slander of title as deficiently pled;
 4. If the Court grants the parties' motions for leave, the new causes of action and factual allegations will require new and further discovery;
 5. The parties are currently conducting written discovery, including meeting and conferring over Defendant's purportedly deficient discovery responses, which written discovery and discovery disputes must be resolved prior to the taking of percipient and party depositions, none of which have yet been taken; and
 6. Plaintiffs recently associated new counsel into the case, who will likely require additional time to prepare for the trial.

On February 26, 2026, Defendant and Cross-Complainant Nahla Droubi ("Defendant") filed an opposition to this Motion, asserting that continuance of the trial is prejudicial to Defendant and that Plaintiff failed to prosecute this matter with requisite diligence. Defendant asserts that this case was initiated on September 27, 2023. After two years of litigation, Plaintiff sought only recently to amend their complaint. Furthermore, Plaintiff only sought continuance of this trial in January of this year, and disclosed the existence of potential insurance coverage and insurance counsel who will be assisting in this case.

In a reply brief filed on March 4, 2026, Plaintiffs re-assert grounds under Cal. Rules of Court (CRC) 3.1332(c), which sets forth good cause for trial continuance. Plaintiffs deny the contention that they failed to act with diligence. Furthermore, Plaintiffs assert that there is no substantial prejudice to Defendant in granting this continuance.

Analyses

A trial court may grant a trial continuance upon a showing of good cause. (CRC Rule 3.1332(c)). Good cause is demonstrated by a factual showing stating the reasonable grounds for the order sought. The decision whether to grant a motion for continuance is within the trial court's discretion. *Color-Vue, Inc. v. Abrams* (1996) 44 Cal.App.4th 1599, 1603; *Jurado v. Toys "R" Us* (1993) 12 Cal.App.4th 1615, 1617. However, "the refusal of a continuance which has the practical effect of denying the applicant a fair hearing is reversible error." *Oliveros v. County of Los Angeles* (2004) 120 Cal.App.4th 1389, 1395. "Such decisions must be made in an atmosphere of substantial justice." (Id.)

Pursuant to CRC Rule No. 3.1332, "To ensure the prompt disposition of civil cases, the dates assigned for a trial are firm. *All parties and their counsel must regard the date set for trial as certain.*" (Emphasis added). However, California Rules of Court (CRC) Rule nos. 3.1332(c) and 3.1332(d) provide trial courts with factors that should be considered as grounds for continuance. The applicable provisions of this rule state:

- (c) Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative

showing of good cause requiring the continuance. Circumstances that may indicate good cause include: []

(6) A party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; or

(7) A significant, unanticipated change in the status of the case as a result of which the case is not ready for trial.

(d) Other factors to be considered

In ruling on a motion or application for continuance, the court must consider all the facts and circumstances that are relevant to the determination. These may include:

(1) The proximity of the trial date;

(2) Whether there was any previous continuance, extension of time, or delay of trial due to any party;

(3) The length of the continuance requested;

(4) The availability of alternative means to address the problem that gave rise to the motion or application for a continuance;

(5) The prejudice that parties or witnesses will suffer as a result of the continuance;

(6) If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay;

(7) The court's calendar and the impact of granting a continuance on other pending trials;

(8) Whether trial counsel is engaged in another trial;

(9) Whether all parties have stipulated to a continuance;

(10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and

(11) Any other fact or circumstance relevant to the fair determination of the motion or application.

In considering the foregoing authorities and rules, the Court finds good cause to continue this trial. This is the first continuance sought. The reasons for continuance is premised on the pending cross-motions to amend the operative pleadings, which, if granted at the concurrent hearings of those motions on March 11, 2026, would require the Parties to conduct additional discovery and further preparation for trial. This case will not be ready for trial in a month. Moreover, associated counsel for Plaintiffs will require additional time to consider coverage for claims asserted by Defendant and to prepare for trial. The potential existence of coverage for Defendant's claims may change the dynamics of this case and offer opportunities for settlement, which is good reason to continue the

trial.

Ruling

Plaintiffs' Motion to Continue the trial is **granted**. The current trial date of April 6, 2026 is **vacated**. The Parties are ordered to appear at the hearing on March 11, 2026 for a trial setting conference trailing the cross-motions for leave to file amended complaint and cross-complaint.

8. 9:00 AM CASE NUMBER: C23-02436
CASE NAME: DENNIS WANKEN VS. NAHLA DROUBI
***HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT**
FILED BY: WANKEN, DENNIS
TENTATIVE RULING:

Plaintiffs Dennis and Eleni Wanken's motion for leave to file a first amended complaint is **granted**. The Wankens may file and serve their FAC by March 25, 2026.

The Wankens filed this case on September 27, 2023, seeking payment from Droubi for half the cost of repaving their shared private roadway, which is part of an express easement. In the original complaint, the Wankens sued for (1) breach of written contract, (2) breach of contract implied in fact and (3) unjust enrichment. In this motion, the Wankens seek leave to add two new causes of action: trespass and contribution based upon Civil Code section 845(b). The contribution claim is also seeking half the cost of repaving their shared driveway. The trespass claim adds new facts, alleging that Droubi and her family and guests walk around the express easement on a footpath and use Wankens' property without permission.

The Wankens' attorney explains that his law firm was brought into this case on November 14, 2025, and upon their review of the case, the law firm promptly found two additional causes of action to include in their case. They attempted to meet and confer on amending the complaint on November 24 and December 3, 2025, but Droubi did not agree to the amendments. (Sloboda dec. ¶¶ 5-7.) The Wankens filed this motion for leave to amend on December 5, 2025. The Wankens filed an attorney declaration that explains the changes to the complaint and attaches a redline version of the proposed amendments. The Wankens' motion is compliant with California Rules of Court, rule 3.1324.

There is "a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations]..." (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 487.) Leave to amend can be denied where there is " 'inexcusable delay and probable prejudice to the opposing party' ... [Citation.]" (*Ibid*; see also, *Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048 (even assuming there is unreasonable delay, "it is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment.")).

Droubi opposes this motion, arguing that these amendments should have been much earlier in the case. It appears that the facts supporting the proposed amendments could have been included